

P O R T E R | S C O T T

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CSAA INSURANCE EXCHANGE

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Plaintiff,

v.

CSAA INSURANCE EXCHANGE; DOES
1 through 50,

Defendants.

Case No.: CGC-25-631802

**NOTICE OF MOTION AND MOTION
TO STRIKE PLEADING**

(C.C.P. § 435 AND C.C.P. § 436)

DATE: May 19, 2026

TIME: 09:00 A.M.

DEPT: 302

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

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1 **TO ALL PARTIES AND THEIR RESPECTIVE ATTORNEYS OF RECORD:**

2 PLEASE TAKE NOTICE that on May 19, 2026, at 9:00 a.m. or as soon thereafter as the
3 matter may be heard in Department 302 of the above-entitled court, located at 400 McAllister St.,
4 San Francisco, CA, 94102, Defendant CSAA INSURANCE EXCHANGE (“Defendant”) will and
5 hereby does move the court for an order striking the entirety of the First Amended Complaint
6 (“FAC”) of Plaintiff FRANCISCUS DYLAN ROSARIO,, filed on or about February 25, 2026, or
7 in the alternative, striking all of Plaintiff’s claimed damages, including attorney’s fees, punitive
8 damages, and all other claimed items of damage, pursuant to C.C.P. § 435 and C.C.P. § 436: The
9 Court should strike the entire FAC, or in the alternative, all the following items of damage from the
10 FAC:

11 **a) RELIANCE AND ECONOMIC INJURY** (*FAC*, pg. 8: line 14):

- 12 ○ out-of-pocket procurement and investigation expenses to obtain records and
13 evidence that CSAA represented had already been investigated, including:
14 ▪ fees paid to obtain public records and related materials;
15 ▪ fees paid for copying, certification, and retrieval; and
16 ▪ fees paid for transcription and review of obtained audio and video. (*FAC*,
17 ¶ 23-24).

18 **b) FORCED THIRD PARTY LITIGATION AND PRENTICE ATTORNEY-FEE
19 DAMAGES** (*FAC*, pg. 9: line 1-2)

- 20 ○ Plaintiff incurred fees and litigation costs in that third-party action that would not
21 have been incurred but for CSAA's Denial Letter misrepresentation. (*FAC*, ¶ 26).
22 ○ CSAA’s tortious conduct caused Plaintiff to incur fees in litigation with another
23 party. (*FAC*, ¶ 27).

24 **c) LOST EARNINGS, LOSS OF EARNING CAPACITY, AND LOST
25 PRODUCTIVE TIME CAUSE BY FRAUD INDUCED BURDENS** (*FAC*, pg. 10:
26 line 6-7)

- 27 ○ ...incremental burdens that required Plaintiff to spend substantial time and effort
28 obtaining, reviewing, organizing, transcribing, authenticating, and presenting
foundational objective evidence that CSAA represented had already been
investigated before issuing a categorical denial. (*FAC*, ¶ 30).

29 **d) FRAUD-INDUCED DELAY, PHYSICAL EXACERBATION, AND
30 ADDITIONAL HEALTH-RELATED HARM** (*FAC*, pg. 10: line 20-21)

- 31 ○ Plaintiff alleges he suffered severe injuries in the underlying collision and that
32 CSAA knew, or had reason to know, from the nature of the claim and the
33 information provided in connection with the bodily-injury liability claim, that
Plaintiff was physically vulnerable and that prolonged stress, delay, and repeated
high-strain demands would foreseeably impose additional physical toll. (*FAC*, ¶
34 33).

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- [CSAA] forced Plaintiff into a protracted and burdensome multi-year effort to establish and authenticate foundational objective evidence relevant to liability, resulting in recurring high-strain events including prolonged sitting, travel, preparation demands, and extended periods of stress and uncertainty. (*FAC*, ¶ 34).
- incremental physical harm beyond the underlying collision injuries, including exacerbation of pain, flare episodes, sleep disruption, deconditioning, and functional decline, and that Plaintiff required additional medical or therapeutic care to address these incremental harms. (*FAC*, ¶ 35).
- e) **EMOTIONAL DISTRESS, HUMILIATION, AND PSYCHOLOGICAL HARM PROXIMATELY CAUSED BY FRAUD-INDUCED DELAY AND BURDENS** (*FAC*, pg. 11: line 12-14)
 - CSAA's Denial Letter ... stating... CSAA had "concluded" its investigation and "concluded" its insured was not liable"[.] ... foreseeably inflicted substantial emotional and psychological harm by placing Plaintiff in the position of being categorically denied while also being forced to personally bear the burden of obtaining and proving the foundational objective evidence CSAA represented had already been investigated. (*FAC*, ¶ 37).
 - Plaintiff suffered emotional distress and psychological harm including anxiety, persistent stress, sleep disruption, and related symptoms, as well as humiliation and loss of dignity associated with being treated as though his claim lacked merit notwithstanding the existence of readily obtainable objective evidence. (*FAC*, ¶ 38).
 - Plaintiff incurred additional out-of-pocket medical or therapeutic expenses related to managing these conditions. (*FAC*, ¶ 39).
- f) **ADDITIONAL SPECIAL DAMAGES: MEDICAL/THERAPEUTIC EXPENSES, TRANSPORTATION, AND HOUSEHOLD ASSISTANCE** (*FAC*, pg. 12: line 7-8)
 - medical visits, therapy or counseling, medication expenses, transportation expenses associated with treatment and required events, and costs of assistance with household tasks and self-care that were increased by the incremental physical and psychological toll caused by the fraud-induced delay. (*FAC*, ¶ 41).
- g) **FUTURE DAMAGES CAUSED BY FRAUD-INDUCED AGGRAVATION AND ONGOING HARM** (*FAC*, pg. 12: line 18-19)
 - may require future medical or therapeutic care, and may continue to impair Plaintiff's ability to work and to engage in ordinary life activities. (*FAC*, ¶ 43).
- h) **INJUNCTIVE RELIEF** (*FAC*, pg. 18: line 5)
 - Enjoining CSAA from issuing denial letters stating an investigation is 'concluded.' (*FAC*, pg. 18: line 5-6)
- i) **COSTS OF SUIT** (*FAC*, pg. 18: line 17)
- j) **PREJUDGMENT INTEREST** (*FAC*, pg. 18: line 18).

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1 The grounds for striking all items of damages in Plaintiff's FAC are: the claimed damages
2 are irrelevant, false, improper, and not pled in conformity with California law. Furthermore, Plaintiff
3 cannot properly plead his cause of action for fraud. All the allegations in Plaintiff's FAC target
4 Defendant's privileged conduct and communications under Civ. Code § 47(b). Plaintiff lacks
5 standing to sue Defendant—a third party's insurance carrier. Plaintiff is collaterally estopped from
6 seeking recovery on the same damages sought in his underlying jury trial—which he lost. Plaintiff
7 was not the prevailing party at the underlying jury trial and cannot therefore seek costs.

8 This motion is based upon this notice, upon the Memorandum of Points and Authorities, the
9 Declarations of Tyler J. O'Connell, filed herewith; upon the records and files in this action; upon
10 Defendant's Request for Judicial Notice and the matters appended thereto and upon such further
11 evidence and argument as may be presented prior to or at the time of hearing on the motion.

12 **TENTATIVE RULINGS**

13 A. The San Francisco Superior Court adopts CRC 3.1308 as the tentative ruling
14 procedure in civil law and motion and discovery matters. For Real Property Court, compliance with
15 8.10(B) is required.

16 B. Parties may obtain a tentative ruling issued by the Law and Motion and Discovery
17 Departments by telephoning (415) 551-4000 or visiting the court's website at
18 <https://sf.courts.ca.gov/> and clicking the online services link. Changes in telephone numbers will
19 appear in the official newspapers.

20 C. A party who fails to appear at the hearing is deemed to submit to the tentative ruling.
21 However, no party may submit to a tentative ruling that specifies that a hearing is required.

22 D. Parties who intend to appear at the hearing must give notice to opposing parties and
23 the court promptly, but no later than 4:00 p.m. the day before the hearing unless the tentative ruling
24 has specified that a hearing is required. Notice of contesting a tentative ruling must be provided by
25 sending an email to the court to contestdept301tr@sftc.org or contestdept302tr@sftc.org with a copy
26 to all other parties stating, without argument, the portion(s) of the tentative ruling that the party
27 contests. A party may not argue at the hearing if the opposing party is not so notified and the
28 opposing party does not appear.

1 E. If no party appears, or if a party does not appear because the opposing party failed to
2 give sufficient notice of intent to argue, then the tentative ruling will be adopted.

3 F. Tentative rulings are generally available by 3:00 p.m. the day before the hearing. A
4 tentative ruling that does not become available until after 3:00 p.m. is a late tentative ruling. A late
5 tentative ruling will indicate that the ruling is late. If a tentative ruling is late, the parties must appear
6 unless all parties agree to submit to a late tentative ruling in which case the Court will adopt the late
7 tentative ruling pursuant to subsection E above.

8 G. The prevailing party on a tentative ruling is required to prepare a proposed order
9 repeating verbatim the substantive portion of the tentative ruling and must bring the proposed order
10 to the hearing even if the motion is not opposed or the tentative ruling is not contested. If the
11 prevailing party is appearing at the hearing remotely, the proposed order may be sent to the court
12 by an email to contestdept301tr@sftc.org or contestdept302tr@sftc.org. If the proposed order is for
13 a summary judgment and/or adjudication motion, the proposed order must comply with
14 requirements of CCP § 437c(g). If the proposed order is for a motion, such as a motion to withdraw
15 as counsel, where there is a Judicial Council form order, the prevailing party should complete the
16 Judicial Council form as the proposed order.

17
18 Dated: April 22, 2026

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O'Connell

21 By _____
22 Chad S. Tapp
23 Tyler J. O'Connell
24 Attorneys for Defendant
25 CSAA INSURANCE EXCHANGE
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1 ***Franciscus Dylan Rosario v. CSAA Insurance Exchange; et al.***
2 ***San Francisco County Superior Court Case No.: CGC-25-631802***

3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On April 22, 2026, I served the following document:

7 **NOTICE OF MOTION AND MOTION TO STRIKE PLEADING**

8 X	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
9	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
10	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
11	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).
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17 Addressed as follows:

18 **PLAINTIFF, IN PRO PER**

19 Franciscus Dylan Rosario
20 7624 Melody Drive
21 Rohnert Park, CA 94928
22 soltrinox@gmail.com

23 I declare under penalty of perjury under the laws of the State of California that the foregoing
24 is true and correct. Executed on Sacramento, California on April 22, 2026.

25 **Monique Schubert**
26 Monique Schubert
27
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